

August 21, 2025 Compliance Response Letter — Public Exhibit and Alleged Waiver Trigger

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 17 — Filed January 22, 2026; Letter dated August 21, 2025

August 21, 2025

To: Fictional Federal Health Program Oversight Office

From: Cinder Lake Health Network, Inc.

Re: Response concerning reports submitted by Rhea Calder

Cinder Lake responds to the Office's request for a status update concerning Calder's federal-program billing reports. The organization retained outside counsel to review the reports, relevant business records, and its compliance response. That review has concluded sufficiently for Cinder Lake to report the actions described here.

This letter announces general conclusions and remediation only. It does not quote or summarize counsel's communications, witness communications, mental impressions, recommendations, or legal analysis.

General Conclusions

Cinder Lake determined that Calder's reports identified control weaknesses warranting correction. The review did not substantiate a systemic practice of knowingly submitting unsupported federal-program claims. Some exception items required additional documentation or supervisory attention, and the organization addressed those items through its ordinary correction processes.

These statements are Cinder Lake's corporate conclusions. They do not reveal what any employee told counsel, what legal standards counsel applied, whether counsel expressed a different preliminary view, or how counsel weighed particular evidence. No advice-of-counsel defense is asserted.

Remedial Measures

Cinder Lake implemented three measures: revised escalation guidance for unresolved documentation exceptions; targeted training for personnel responsible for review and reconciliation; and an added supervisory reconciliation step before an exception may be closed. The measures apply prospectively and are subject to compliance monitoring.

Adopting remediation is not an admission of a statutory violation or retaliation. The organization elected to strengthen controls while disputing any suggestion of knowing misconduct. The Office may evaluate the measures through nonprivileged policy documents and implementation records.

Cooperation and Information Boundary

Cinder Lake will preserve relevant records, respond to lawful requests, and make knowledgeable personnel available through appropriate process. It asks that patient and workforce privacy be protected. No real patient or claim is involved in this exercise.

The organization has not enclosed the outside-counsel memorandum, interview notes, privileged communications, or litigation work product. The fact that counsel performed a review does not communicate the advice given. This letter should be read as the organization's response, not as a transcript or summary of counsel's confidential analysis.

Signature and Later Exhibit Certification

Respectfully submitted on August 21, 2025 by **Selene Ward**, fictional Chief Compliance Officer for Cinder Lake Health Network, Inc. The receiving oversight office, sender, and all described records are fictional.

On January 22, 2026, **Mara Voss**, fictional litigation counsel, certified this complete five-page letter as a public exhibit in Civil Action No. SYN-EDNC-25-CV-0882. Filing the same letter does not add words to the pre-suit disclosure or place any separate privileged communication in the district record.